

Satpal Singh v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 4 February 2020 · WRIT - C No. - 2218 of 2020 · **Writ petition dismissed; petitioner relegated to Section 127 appeal.**

HEADNOTE

Once a final assessment on an electricity-theft allegation has been made and a recovery certificate issued, the assessee's remedy is an appeal under Section 127 of the Electricity Act, 2003. The High Court will not entertain a writ petition in the face of that efficacious alternative remedy.

FACTUAL SUMMARY

On an allegation of electricity theft, a provisional assessment was made against the petitioner in 2018. He claimed to have filed an objection in 2019, well after the period prescribed under the Electricity Supply Code. A final assessment was thereafter made and a recovery certificate issued. He petitioned the Allahabad High Court. After an adjournment on 23 January 2020 with any interim order continued, the Division Bench heard the writ on 4 February 2020.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

appeal against final assessment — alternative remedy bars writ

HOLDING

Where a final assessment has been made on an electricity-theft allegation and a recovery certificate issued, the petitioner has an efficacious remedy of appeal under Section 127 of the Electricity Act, 2003, and the High Court will not interfere in writ. ¶ 1

PRINCIPLE TAGS

alternate-remedy-section-127-appeal-bars-writ

The Court dismissed the writ because an efficacious Section 127 appeal lay against the final assessment and the recovery certificate that followed. ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal

Having recorded that a final assessment had been made and a recovery certificate issued, the Court held the petitioner to the Section 127 appeal and declined writ interference. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 2019 OBJECTION TO THE 2018 PROVISIONAL ASSESSMENT WAS TIME-BARRED UNDER THE ELECTRICITY SUPPLY CODE

¶ 1

NOT DECIDED — VALIDITY OR QUANTUM OF THE FINAL THEFT ASSESSMENT, AND LEGALITY OF THE RECOVERY CERTIFICATE

¶ 1